

ORDER SHEET**IN THE LAHORE HIGH COURT, RAWALPINDI BENCH.
JUDICIAL DEPARTMENT**

Case No:

Writ Petition. No.1240/2014

Muhammad Jamal

Versus

Addl. Sessions Judge, etc

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signatures of Judge and that of parties or counsel, where necessary.
05.	16.09.2014.	Ch. Tariq Abrar Babar, Advocate for the petitioner. Mirza Umer Asad ullah, Advocate for respondent No2. Ch. Salim Murtaza Mughal, Assistant Advocate General with Israr Satti, Inspector with record. Muhammad Jamal, petitioner through instant Constitutional petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 has assailed the judgment dated 22.04.2014 passed by the learned Additional Sessions Judge, Gujar Khan whereby the learned trial court while acquitting the petitioner, directed Station House Officer, Police Station, Gujar Khan to restore physical possession of the lady- complainant over house/<i>Haveli</i> in dispute comprising of land measuring 01-Kanal, 16-Marlas with construction of three rooms, store, <i>Kothri</i> (small room, veranda, kitchen) and drawing room within fortnight positively according to law and submit report in this regard. 2. Brief facts of the case are that the complainant (respondent No.2) filed a private complaint on 11.09.2013 under Illegal Dispossession Act, 2005 before the learned Sessions Judge, Gujar Khan which was later on, entrusted to the court of the learned Additional Sessions Judge, Gujar Khan wherein she mentioned that her husband died in the year 2011 leaving behind legal heirs i.e. complainant, Shahzada and Mubin (sons) along with a daughter, namely, Mst. Nagina whereas her both

sons reside abroad and she lives with her daughter in Gujar Khan City; that her father-in-law had given separate lands to his three sons including her husband. The complainant has also stated that her deceased husband constructed rooms over the said land measuring 01-Kanal, 16-Marlas falling in Khewat No.56, khasra No.1097, situated at Village Hamid Jhangi, 25/30 years ago. On 04.8.2013 at 11.00 noon, when she visited her house to get it repaired, accused persons Tazaaram Hussain, proclaimed offender ("dever" of the complainant), Iftikhar alias Iffi and Muhammad Jamal-petitioner (sons of Tazaaram Hussain) along with Ziafat Hussain (brother-in-law of Tazaaram Hussain) while armed with "*dandas*" in furtherance of their common intention forcefully entered in her house, and not only abused and extended threats to the lady-complainant but also illegally occupied her house by way of force and put their locks. The alleged occurrence was witnessed by Tahir Mehmood, PW-2 and Shabbir PW-3 (sons of Sarwar). The house occupied by the accused named above, is comprising of three rooms store, *Kothri* (small room, veranda, kitchen and drawing room which was in shape of *haveli* bounded as under:-

East.	House of Muhammad Jan.
West.	House of Anwar.
North.	Street.
South.	House of Lehrasab.

3. The electricity connection bearing No.05-14377-1323400-R is in the name of complainant's deceased husband since 1995 and she has paid electricity bills till

date of her dispossession. She moved an application on 05.08.2014 to the police hierarchy but no action was taken upon it and thereafter she filed a private complaint.

4. On institution of private complaint, summons were issued to the accused including the petitioner. The petitioner appeared before the court whereas accused Tazaaram Hussain, Iftikhar alias Iffi were declared proclaimed offenders vide order dated 09.12.2013. The learned trial court has recorded statements of the complainant as well as her witnesses, namely, Tahir Mehmood and Shabbir as PW-1 to PW-3. The statement of accused was also recorded under Section 342 of Cr.P.C. After recording the evidence and giving hearing to the learned counsel for the parties, the learned trial court has acquitted the petitioner and Ziafat Hussain whereas direction was issued to the Station House Officer, Police Station, Gujar Khan to restore physical possession of the property in dispute (mentioned above) to the lady-complainant.

5. I have gone through the impugned judgment and perused the entire record appended with the instant petition.

6. It is an admitted fact that the petitioner is son of Tazarram Hussain (since proclaimed offender) and he is statedly not called owner of the property in dispute. The learned trial court while acquitting the petitioner from the charge, has stated that family of principal co-accused, namely, Tazaaram (since proclaimed offender) is in illegal possession of portion of house in dispute and being his son, accused-Jamal can live in the said house as

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well, he can not be held responsible for commission of alleged offence committed by his co-accused i.e. father since proclaimed offender. Learned counsel for the petitioner has failed to establish that the petitioner has any legitimate right in the property. It is an admitted fact that the petitioner while appearing in witness box under Section 340 (2) of Cr.P.C. has admitted that his birth took place in new house constructed by his father and he also admitted that in the life of Muhammad Sarwar, grand father of the petitioner, all three sons had got separated and house in dispute was constructed prior to his birth. During cross-examination, he deposed that disputed house can be in Khasra No.1097 comprising of 01-Kanal, 16-Marlas and he also admitted during cross-examination that electricity meter in the name of complainant's deceased husband was installed in the year 1995 whereas meter in the name of his father-Tazaaram Hussain was not installed in the said house. He also admitted the fact that property in dispute comprised of three rooms, store, *Kothri* (small room, veranda, kitchen and drawing room. The learned trial court for determining the dispute between the parties formulated two questions which are as under:-

- a) *Whether lady-complainant was in physical possession of house in dispute comprising Khasra 1097 Khewat 56 land measuring 1-K 16-Marlas with construction of three rooms, store, veranda, kitchen and drawing room prior to 04.08.2013 at 11.00 day-time?*
- b) *Whether present both accused Jamal and Ziafat have forcibly dispossessed lady-complainant PW1 from her owned and possessed disputed-house while*

acting in furtherance of their common intention with their principal co-accused Tazaram Hussain and another Iftikhar alias Iffi both since PO.?

7. The judgment further reflects that though the petitioner was acquitted by the learned trial court but the learned trial court gave certain findings on the point of illegal dispossession of the complainant and in this regard, observed as under:-

- (i) *Accused have got exhibited in support of their oral assertion electricity bills in the name of Sarwar for the month of December, 2013 Ex.D.A that of January, 2014 Ex.D.B, Feb.2014 Ex.D.C. Nov.2013 Ex.D.D and Oct.2013 Ex.D.E along with copy of register haqdarar zamin for the year 2010-2011 Ex.D.F. None of the produced electricity bills Ex.D.A to Ex.D.E pertain any month prior to 04.08.2013 and if at all accused Tazaram and Iftikhar (since POs) and accused Jamal present in court were in physical possession of the house/havaily in dispute they must have retained previous electricity paid bill as well but no such electricity bill is produced in defence evidence and even otherwise the bills produced are pertaining to electricity connection in the name of late Muhammad Sarwar father-in-law of lady-complainant. Lady-complainant has also got exhibited an application to C.P.O, Rawalpindi Mark-A which is supporting the version of lady-complainant that accused Tazaram along with his two sons dispossessed her from the house in dispute.*

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- (iii) *In view of above discussion when accused Jamal has accepted that his father co-accused Tazaram (since PO) and PW-3 Shabbir had constructed separate houses in the same village in the life time of his grand father late Muhammad Sarwar and he was born in an other house constructed by his father and that no electricity meter is found installed in the house/havaili in dispute in the name of his father co-accused Tazaram (since PO) and that his paternal uncle Suleman was residing in the house in dispute and lastly has accepted that disputed-house is comprising three rooms, one small room (kothri), kitchen, veranda, store and drawing-room which fact is also authenticated by DW-1 Mehboob and lastly it is found by the local commission appointed by this court with consent of both parties on 09.04.2014 who filed a report on 12.04.2014, which contains that lady-complainant is in physical possession of three rooms including one constructed on first floor whereas other three rooms are in physical possession of accused Tazaram (since PO) therefore, lady-complainant has proved the second point for determination that she was dispossessed forcibly from the havaily/house in dispute on 04.08.2013."*

8. These are findings on facts having been arrived at by the learned trial court. The learned trial court has rightly come to the conclusion that the complainant-lady was dispossessed forcibly from the *haveli*. The statements of PWs were consistent on material point and veracity of their evidence could not be shaken during cross-examination. It is an admitted fact that husband of complainant, namely, Suleman, Tazzaram Hussain (since P.O) and prosecution witnesses, namely, Tahir

Mehmood, PW-2 and Shabbir PW-3 were real brothers while Shabbir (PW-3) was father-in-law of complainant's daughter but mere relationship of complainant with PWs would not hold the witnesses interested. The complainant and both PWs were subjected to an exhaustive cross-examination but despite various searching questions, nothing advantageous could be extracted. The prosecution witnesses had corroborated each other on the salient features of occurrence i.e. time and date of occurrence which corroborate version of the complainant-lady. After perusal of evidence it is fully established that complainant-lady has proved her case and the findings rendered by the learned trial court has got support from the evidence available on record. The defence evidence produced by the petitioner also proved that complainant-lady was in possession of land measuring 01-Kanal, 16-Marlas comprising of three rooms, store, *Kothri* (small room, veranda, kitchen) and drawing room. The learned trial court has rightly come to the conclusion that the complainant-lady is entitled to get the possession of the land in question. The learned trial court under Section 8(2) of Illegal Dispossession Act, 2005 can restore possession of the complainant-lady, if court comes to conclusion that same was illegally taken away by the accused from the complainant-lady or occupier of the land. The findings recorded by the learned trial court is in accordance with law and facts on record, which needed not to be interfered with by this Court while exercising Constitutional jurisdiction under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973.

9. The learned counsel for the petitioner despite his best efforts has failed to point out any mis-reading or non-reading of evidence. It is established that possession of the land in

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question was with the complainant-lady and she was illegally dispossessed by the accused. In this view of the matter, possession has rightly been restored to respondent No.2/complainant. No legal flaw or constitutional defect has been pointed out by the learned counsel for the petitioner. The judgment passed by the learned trial court is not only legal but minutely just.

10. Consequently, this petition being without any force, stands dismissed. Before parting with the order, it is necessary to mention that the learned counsel for the complainant-lady has produced copy of F.I.R. No.235-2014 dated 27.08.2014, registered under Sections 337-F(v), 337-L(ii), 34 PPC, at Police Station Mandra, District Rawalpindi which shows that present petitioner after restoration of possession in favour of complainant-lady committed assault upon ladies including complainant and injured them which also shows that after acquittal from the competent court of law, the petitioner has made life of the complainant-lady miserable.

(Aalia Neelum)
Judge

Approved for reporting.